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IN THE SUPERIOR COURT OF THE STATE OF ARIZONA

IN AND FOR THE COUNTY OF MARICOPA

John CD Doe, a single man, Plaintiff, vs. Big Brothers Big Sisters of America, a District of Columbia, non-profit corporation; Big Brothers Big Sisters of Central Arizona, an Arizona corporation; John Doe 1-100; Jane Doe 1-100; and Black & White Corporations 1-100, Defendants.	Case No. CV2020-014920 **BIG BROTHERS BIG SISTERS OF AMERICA'S NOTICE OF NON-PARTIES AT FAULT** (Assigned to the Honorable Bradley Astrowsky)

Defendant Big Brothers Big Sisters of America ("BBBS America"), pursuant to Rule 26(b)(5) of the Arizona Rules of Civil Procedure and A.R.S. §12-2506(B), hereby submits this Notice of Non-Parties at Fault to allege that the following persons not parties to this action may be wholly or partially at fault for Plaintiff's alleged damages, as follows:

1. Italo Arbulu
Correctional Training Facility
Soledad Prison Road
Soledad, CA 93960

Defendant maintains that it acted reasonably at all times and that it did not know of any alleged sexual contact or unreasonable risk of sexual misconduct by Mr. Arbulu against Plaintiff before it allegedly occurred and therefore is not liable. Plaintiff has alleged that Mr.

Arbulu sexually abused him as set forth in Plaintiff's Amended Complaint. Defendant reserves the right to request that, in the event the trier of fact determines Plaintiff was sexually abused by Italo Arbulu, the trier of fact apportion all of the fault to Arbulu for causing the injuries and damages alleged and proven by Plaintiff. The California Department of Corrections inmate locator indicates that Mr. Arbulu is currently incarcerated at the Correctional Training Facility, Soledad Prison Road, Soledad, CA 93960.

2. Penny Campbell

Plaintiff has alleged in his Amended Complaint that Italo Arbulu had overnight visits with Plaintiff, purportedly in violation of BBBS America's standards, policies, procedures, directives and a reasonable standard of care, which BBBS America denies. BBBS America has asserted an affirmative defense in its Answer that Plaintiff's alleged injuries and damages, if any, were directly and proximately caused or contributed to by the negligence of third parties who were responsible for Plaintiff's care, custody and supervision, including but not limited to his mother, Penny Campbell, whom Plaintiff has alleged raised him and thus was legally responsible for his custody and care. Ms. Campbell was negligent, grossly negligent and/or reckless in her duty of care for Plaintiff to the extent she had knowledge of and/or permitted Plaintiff to have overnight visits with Italo Arbulu and/or had any knowledge of any of the alleged wrongdoing that Plaintiff has alleged in his Amended Complaint against BBBS America and failed to report it, failed to prevent any alleged recurrence, or failed to mitigate Plaintiff's alleged damages. The current whereabouts of Penny Campbell are presently unknown but are likely to be within Plaintiff's knowledge.

3. Any church, parish or clergy referenced in Plaintiff's Amended Complaint as having a relationship with Plaintiff and Italo Arbulu.

Plaintiff has alleged in his Amended Complaint that BBBS America failed to train minors within Defendants' geographical confines about the dangers of sexual abuse by clergy, which BBBS America denies. Plaintiff also has alleged in his Amended Complaint that Plaintiff was a parishioner and student under the control and authority of Italo Arbulu, whom Plaintiff alleges sexually abused him. BBBS America has no knowledge of and is not

responsible for any religious affiliation between them. Plaintiff's alleged injuries and damages, if any, were directly and proximately caused or contributed to by the negligence of third parties who were responsible for Plaintiff's care, custody and supervision, including any clergy, parish or other religious organization to which Plaintiff's Amended Complaint refers.

Discovery and disclosure are ongoing and Defendant names these non-parties at fault based on available information to date regarding the alleged events at issue in Plaintiff's Amended Complaint and any subsequent amendments. Defendant reserves the right to amend and supplement these non-party at fault designations as discovery continues.

DATED this 7th day of November, 2022.

BERKE LAW FIRM, PLLC

By */s/ Stacey F. Gottlieb*
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Stacey F. Gottlieb
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The foregoing document was e-filed with the Clerk of Court this 7th day of November 2022, and a copy e-served via AZTurboCourt and e-mailed to:

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